Plaintiff has filed no opposition. Proof of service is in the file, including a notice of demurrer that sets forth the hearing date and time.

On October 23, 2025, the Court continued the demurrer on the ground that Lone Tree Estates had not provided any evidence that it contacted plaintiff in order to meet and confer about the demurrer as required by Code of Civil Procedure section 430.41(a). Counsel for Lone Tree Estates complied, but plaintiff did not respond. Accordingly, the demurring party has complied so far as is possible.

Based on the arguments submitted by demurring party, the **demurrer is sustained, with leave to amend.**

12. 9:00 AM CASE NUMBER: MSC18-01132
CASE NAME: SCHWENDEMAN VS. TRAVEL STAFF
***HEARING ON MOTION IN RE: COMPLIANCE HEARNIG SET BY THE COURTROOM**
FILED BY:
<u>*TENTATIVE RULING:*</u>
Based on the declaration of the Settlement Administrator, the settlement has been largely implemented, but the uncashed distributed paychecks will not be voided until March 10, 2026**. A further compliance hearing is set for March 26, 2026, 9:00 a.m. Plaintiff is to provide a declaration one week before the hearing updating the implementation.** The 5% of the attorney's fees currently held by the settlement administrator shall continue to be withheld pending further court order at the compliance hearing.

13. 9:00 AM CASE NUMBER: MSC20-02497
CASE NAME: HOPE, ET AL. VS TAYLOR MORRISON OF CA
HEARING IN RE: MOTION FOR TERMINATING SANCTIONS OR, IN THE ALT, EVIDENCE PRECLUSION AT TRIAL FILED BY DEFT/XCOMP TAYLOR MORRISON
FILED BY:
<u>*TENTATIVE RULING:*</u>
Five-Year Statutory Deadline for Trial

As a threshold matter, to the extent that compliance with the five-year statute is an issue, during the time period of March 23, 2021 to November 15, 2023, the running of the time period was tolled. (C.C.P. § 583.40(b).) Taylor Morrison argues that the stay was required by plaintiffs' failure to satisfy the pre-litigation requirements of Civil Code section 895, and was not a complete stay of the action, because alternative discovery was proceeding. It relies on *Bruns v. E-Commerce Exchange Inc.* (2011) 51 Cal.4th 717, which states that the section applies only to "complete stays that suspend all proceedings in the action." The Order granting the stipulated stay, however, states that "The *entirety of this action* shall be stayed upon execution of the Order by the Court[.]" It further provides that if resolution is not reached "the stay on this litigation shall be lifted by the Court, upon the written request of either Plaintiffs or Defendant, and Plaintiffs *shall then have the right to proceed* with this action[.]" (Stipulated Order of March 23, 2021, Par. 4 [emphasis added].) For purposes of Code of Civil Procedure section 583.40(b), engaging in the Civil Code section 895 "pre-litigation" process did not render the stay anything less than a complete or full stay.

In the Courts' view, however, this is not the primary issue, because non-compliance is not based slowly on pushing discovery up to the time of trial, it is based on overall failure to comply with discovery obligations under the PTO.

Failure of Plaintiffs to Meet Discovery Deadlines

"PMQ" Depositions

Plaintiffs argue that there was no obligation to produce a witness for a "PMQ" deposition, because defendant did not serve a deposition notice. There was, however, a PTO in place, which by virtue of its procedures apparently dispensed with service of a deposition notice. (Nor does it appear that plaintiffs ever raised this contention until this motion was filed.) The PTO is a discovery order, entered by the Court. Violations of the PTO can be addressed through the overall sanctions section, for overall misuse of discovery. i.e., Code of Civil Procedure section 2023.010.) It applies separately and apart from the sanction provisions that apply to particular discovery methods. (*City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 72-74.)

(Strictly speaking, the "PMQ" deposition part of the discovery act does not apply here. Under Code of Civil Procedure 2025.230(a), the production of "those of its officers, directors, managing agents, employees or agents who are most qualified to testify on its' behalf as to those matters to the extent of any information known or reasonably available to the deponent" applies only where "*the deponent named is not a natural person*." Nonetheless, the parties have operated under a PTO that provided that persons would be made available for "the depositions of each Plaintiff designated as the representative for a particular property." (PTO #1, Par. 17A.) Thus, the PMQ process was modified to apply here.)

General Failure to Comply with Deadlines in the PTOs

PTO #1 was entered on September 6, 2023, without objection. It set deadlines running into Spring of 2025, some of which were not met. When PTO #2 was adopted (on March 25, 2025), the Special Master made a note to incorporate Taylor Morrison's objection to the continuance of any deadlines that had already passed or that were scheduled in relation to then-scheduled August 11, 2025 trial date. The Special Master stated that doing so "would effectively be an evidentiary, if not terminating, sanction," and left that to the Court. After a further conference call with Special Master, plaintiffs were given another extension. Plaintiffs dismissed claims of two homeowners who failed to comply with new deadlines. PTO #3 was entered by the Court on June 24, 2025, based on a continued trial date of December 1, 2025. "PMQ" depositions for homeowners were to take place by September 12, 2025.

Much of the debate concerns one expert, Todd Page. Without parsing the details, it appears that the deposition may have taken place on November 13, but it took this motion to procure his testimony.

Standards for Terminating Sanctions

A terminating sanction requires, at a minimum, that there be a prior order that has been disobeyed, and an opportunity to be heard. (*J.W. v. Watchtower Bible & Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1166-1171.) The Court also must consider whether the party's actions were willful, the detriment to the party seeking discovery, and the number of formal and informal unsuccessful attempts to obtain discovery. (*Moofly Prods. LLC v. Favila* (2020) 46 Cal.App.5th 1, 10-12.)

Where a party seeks an issue sanction, particularly "sweeping evidentiary conclusions that were at the heart of [plaintiff's] theory of [defendant's] liability," the Court must consider lesser sanctions. (*Rutledge v. Hewlett-Packard Co.* (2015) 238 Cal.App.4th 1164, 1194. See also *Lopez v. Watchtower Bible & Tract society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604.)

Conclusion

Taylor Morrison has not made full use of the Special Master's or the Court's authority to take intermediate steps to secure timely discovery compliance. Eventually, Taylor Morrison did ask for evidentiary sanctions, which the Special Master properly found would be akin to a terminating sanction, which ought to be entered by the trial judge. But the issue should be addressed by beginning with an order to compel compliance, graduating to monetary sanctions, and then imposing deadlines with the specific threat of evidentiary or terminating sanctions. In considering the prejudice to Taylor Morrison of plaintiff's failure to comply, it appears that there is more frustration than actual prejudice. As to willfulness, it appears that plaintiffs have at the very least failed to take discovery deadlines seriously. All factors considered, however, to enter a terminating sanction as the first sanction would not be appropriate.

In the alternative, Taylor Morrison seeks an order "precluding Plaintiffs from testifying at trial, and a further order precluding Plaintiffs from calling Todd Page as a witness at trial." Precluding plaintiffs from testifying would not even be tied to the foot-dragging in question. Precluding Mr. Page as a witness apparently would be severe, although neither party has provided in this record the nature and importance of his testimony. It appears that his testimony would be essential.

It does not appear that Taylor Morrison has earlier requested monetary sanctions, nor does it request them in this motion.

The motion is denied.

14. 9:00 AM CASE NUMBER: MSC21-00624
CASE NAME: COLEMAN VS YDESIGN GROUP, LLC
HEARING IN RE: COMPLIANCE
FILED BY:
****TENTATIVE RULING:****
Continued by stipulation and order to December 4, 2025, 9:00 a.m.

15. 9:00 AM CASE NUMBER: MSC21-01344
CASE NAME: GONZALEZ VS AMTRUST NORTH AMERICA, ET AL.
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY: